

Contentious Chamber

Decision on the merits 105/2023 of August 1, 2023

File number: DOS-2020-00186

Subject: Identification of the license plate following a parking violation, followed by a tax assessment regarding parking tax – Reexamination of the decision on the merits 31/2022 of March 4, 2022

The Contentious Chamber of the Data Protection Authority, composed of Mr. Dirk Van Der Kelen, acting president, and Messrs. Frank De Smet and Romain Robert, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant";

The defendants:

City of Kortrijk, Grote Markt 54, 8500 Kortrijk, represented by counsel Bart Martel and Anneleen Van de Meulebroucke, hereinafter "defendant 1";

The SPF Mobility and Transport, General Directorate Road Transport and Road Safety, rue du Progrès 56, 1210 Brussels, represented by counsel Frédéric Debusseré and Ruben Roex, hereinafter "defendant 2".

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I. Facts and Procedure

1. This decision constitutes a reexamination of the decision on the merits 31/2022 of the Contentious Chamber of March 4, 2022, and executes the ruling of the Market Court of October 26, 2022, bearing role number 2022/AR/457.

2. This decision must be read in conjunction with decision 31/2022 and includes a reexamination aimed at reviewing the complaint, taking into account the considerations of the Market Court. This concretely means that the Market Court orders that:

- the Contentious Chamber, in a different composition, reconsiders the case, given the invalid composition that was noted by the Market Court and which tainted decision 31/2022; and
- the defendants have, if applicable, the opportunity to defend themselves regarding the obligation of transparency defined in Articles 5.1 a), 12.1, and 14.1 a) of the GDPR.

3. On November 5, 2020, the complainant filed a complaint with the Data Protection Authority against the defendants. The subject of the complaint concerns the identification of the license plate belonging to the complainant following an observation made by a parking officer from Parko on May 28, 2020, followed by a parking violation and then a tax assessment regarding parking tax. The complainant argues that although defendant 1, which has been responsible for parking policy since January 1, 2020, has indeed adhered to deliberation AF No. 14/2016 of January 21, 2016, this adherence occurred through an agreement that was only concluded on September 1, 2020, and whose point 13 states that the agreement comes into force on January 1, 2020. The mentioned effective date is August 28, 2020. According to the complainant, at the time of the facts, defendant 1 did not have the

necessary authorization to proceed with the identification of his license plate. The security advisor of defendant 1 contacted by the complainant referred to authorization AF No. 18/2015 of May 28, 2015, to justify the identification of the license plate.

1 That is to say, if this is the interpretation of the Contentious Chamber of the complainant's conclusions.

2 Deliberation granting a unique authorization for municipalities to access the DIV directory for the purpose of identifying individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge - Revision of deliberation AF No. 05/2015 of March 19, 2015 (AF-MA-2015-099).

3 https://mobilit.belgium.be/fr/circulationroutiere/immatriculation_des_vehicules/echange_de_donnees/gestion_du_stationnement.

4 The adhesion agreement can be consulted via the following link:

https://mobilit.belgium.be/sites/default/files/DGWVVV/kortrijk_14_2016.pdf.

5 https://dt.bosa.be/fr/liste_des_beneficiaires_deliberation_af_ndeg_142016_du_21_janvier_2016.

6 Deliberation granting a unique authorization for Cities and Municipalities, autonomous municipal managements, and the Parking Agency of the Brussels-Capital Region to be electronically communicated personal data from the Directorate for...

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This deliberation concerns the identification and sanctioning of offenders against municipal regulations or ordinances and does not pertain to a fee or tax. This leads the complainant to conclude that both Defendant 1 and Defendant 2 relied for several months on an incorrect authorization to identify the holder of a license plate through the Directorate for Vehicle Registration (DIV), which would have resulted in a violation of the protection of his personal data. The complainant questions the legal basis on which Defendant 1 relies, for the period from January 1, 2020, to September 1, 2020, to request from Defendant 2 personal data concerning the holder of a license plate for the purpose of identifying individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge, and on what legal basis Defendant 2 provided personal data to Defendant 1 for this purpose, for the same period.

4. On January 18, 2021, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA and the complaint is forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

5. On February 25, 2021, the Contentious Chamber decides, based on Article 95, § 1, 1° and Article 98 of the LCA, that the case can be processed on the merits and informs the concerned parties of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendants' response conclusions has been set for April 8, 2021, the deadline for the complainant's reply conclusions for April 29, 2021, and the deadline for the defendants' reply conclusions for May 20, 2021.

6. On February 26, 2021, the complainant agrees to receive all communications related to the case electronically, in accordance with Article 98 of the LCA.

7. On March 15, 2021, the complainant requests a copy of the file (Art. 95, § 2, 3° of the LCA), which was transmitted to him on March 23, 2021.

8. On March 19, 2021, Defendant 2 requests a copy of the file (Art. 95, § 2, 3° of the LCA), which was transmitted to her on March 23, 2021. On April 7, 2021, she also agrees to receive all communications related to the case electronically, in accordance with Article 98 of the LCA.

9. On March 25, 2021, Defendant 1 agrees to receive all communications related to the case electronically and indicates that she wishes to exercise the option to be heard,

the Directorate for Vehicle Registration (hereinafter "DIV") in order to identify and sanction the perpetrators of offenses against municipal regulations or ordinances (AF-MA-2014-068).

7 See also in this regard the decision on the merits 81/2020 of December 23, 2020.

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in accordance with Article 98 of the LCA, and a copy of the file is also requested (Article 95, § 2, 3° of the LCA), which was transmitted on April 7, 2021.

10. On April 6, 2021, Defendant 2 requests an extension of the deadlines to submit its conclusions, which is granted by the Litigation Chamber on April 7, 2021. The deadline for the receipt of the defendants' response conclusions was set for April 15, 2021, the deadline for the claimant's reply conclusions for May 6, 2021, and the deadline for the defendants' reply conclusions for May 27, 2021.

11. On April 15, 2021, the Litigation Chamber receives the response conclusions from Defendant 1. First, Defendant 1 contests the admissibility of the complaint and argues that the competent body to rule on the complaint is not the Data Protection Authority but the Flemish Control Commission. It also raises a number of procedural points that allegedly violated the rights of the defense. Regarding the merits of the case, Defendant 1 claims to be the legal successor of RCA Parko and, as such, could invoke the deliberations of the Sectoral Committee for the Federal Authority that it cited. It also adds that it has always acted in good faith.

12. On April 15, 2021, the Litigation Chamber receives the response from Defendant 2, which also relied on the relevant deliberations of the Sectoral Committee for the Federal Authority and the legal succession concerning Defendant 1 to decide that the claimant's data contained in the DIV directory could be provided to Defendant 1.

13. On May 6, 2021, the Litigation Chamber receives the reply conclusions from the claimant in which he explains that the authorization on the basis of which his personal data was processed in order to proceed with the collection of a parking fee was inappropriate and that there was no legal basis for processing his personal data for this purpose.

14. On May 27, 2021, the Litigation Chamber received the reply conclusions from Defendant 1, which reiterate the defenses raised in the response conclusions, supplemented by arguments regarding additional allegations made by the claimant.

15. On May 27, 2021, the Litigation Chamber received the reply conclusions from Defendant 2, which reiterate the defenses presented in its response conclusions, adding that it contests being a defendant in this procedure and alleges a violation of the principles of good administration.

16. On July 8, 2021, the parties are informed that the hearing will take place on October 29, 2021.

17. On October 29, 2021, the defendants are heard by the Litigation Chamber. The claimant was duly summoned to the hearing but did not appear.

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18. Following the hearing that took place on October 29, 2021, the Litigation Chamber invites both defendants to respond to the following by November 16, 2021, at the latest: How do the deliberations referred to in the procedural documents and during the hearing relate to the GDPR? More specifically, after the entry into force of the GDPR, is there a sufficient legal basis, on the one hand, for the City of Kortrijk to request data from the DIV and, on the other hand, for the SPF Mobility and Transport, General Directorate Road Transport and Road Safety, to communicate data based on a deliberation, in light of Article 6.1.e in conjunction with Article 6.3 of the GDPR (legal basis of public interest) and Article 24 of the GDPR (accountability)? The complainant is also informed of this on the same date.

19. On November 8, 2021, the minutes of the hearing are submitted to the parties.

20. On November 15, 2021, the Litigation Chamber receives some comments from defendant 1 regarding the minutes, which it decides to include in its deliberation.

21. On November 16, 2021, the Litigation Chamber receives some comments from defendant 2 regarding the minutes, which it decides to include in its deliberation.

22. On November 16, 2021, defendant 2 submits its arguments in response to the question posed by the Litigation Chamber as it was addressed during the hearing, as well as in the subsequent letter dated October 29, 2021. It essentially asserts that as a federal public service, based on the presumption that the legislator did not intend to violate higher legal rules such as European Union law, and based on the principle of legal certainty, it can be assumed that the legal instruments provided by Belgian legislation and regulation are compliant with the GDPR. It does not consider it to be within its

tasks or competence, as SPF Mobility and Transport, to question these legal instruments, defend them, or refrain from applying them.

23. On November 15, 2021, defendant 1 requests clarification on the aforementioned question from the Litigation Chamber, as well as a postponement to respond.

24. On November 24, 2021, the Litigation Chamber explains the scope of the question to defendant 1 and allows it to express its viewpoint by December 8, 2021, at the latest.

25. On December 8, 2021, defendant 1 submits its arguments regarding the question posed by the Litigation Chamber as it was presented during the hearing, as well as in subsequent letters dated October 29, 2021, and November 24, 2021. Defendant 1 indicates that it is unable to respond to the Litigation Chamber's request for the following reasons: there is an incompatibility with the rights of the defense and the general principles of good administration, it is not the responsibility of a data controller to verify the compliance of Belgian data processing regulations with the GDPR, and there is an overreach of the Litigation Chamber's jurisdiction.

26. The hearing on October 29, 2021, took place with three members sitting. Between the hearing and the deliberation regarding the decision, one of the sitting members indicated that they were withdrawing from the case, referring to Article 43 of the LCA. Consequently, and since the LCA does not allow for two members to make a decision, the said decision is made by President Hielke Hijmans, sitting alone (Article 33, § 1, paragraph 3 of the LCA).

27. On March 4, 2022, the Litigation Chamber decides as follows in its decision on the merits 31/2022: "The Litigation Chamber of the Data Protection Authority decides, after deliberation, to order the defendants, under Article 100, § 1, 9° of the LCA, to bring the processing into compliance with Articles 5.1, a); 12.1. and 14.1 a) of the GDPR, as well as with Articles 5.2 and 24 of the GDPR, within a period of two months, and to inform the Data Protection Authority within the same timeframe."

28. On April 4, 2022, the Litigation Chamber receives notification regarding the Data Protection Authority (hereinafter "the DPA") of a summons to appear on April 27, 2022, before the Market Court.

29. On April 27, 2022, the preliminary hearing takes place before the Market Court, with deadlines for submissions for the parties set for both the suspension of the execution of the contested decision and for the merits procedure. The pleadings are also scheduled for June 22, 2022, for the suspension procedure and September 21, 2022, for the merits procedure.

30. On July 27, 2022, the Market Court issues an interim ruling in which it declares unfounded the request of defendant 1 to order the lifting of the provisional enforceability of the DPA's decision of March 4, 2022, until the Market Court rules on the merits and states that any execution measures already taken must be immediately annulled.

31. On October 26, 2022, the Market Court issues its ruling. The ruling contains the following main points of attention:

8 <https://www.gegevensbeschermingsautoriteit.be/publications/tussenarrest-van-27-juli-2022-van-het-marktenhof-ar-457.pdf> (available only in Dutch).

9 The ruling is available on the website of the Data Protection Authority via the following link: <https://www.gegevensbeschermingsautoriteit.be/publications/arrest-van-26-oktober-2022-van-het-marktenhof-ar-457.pdf> (available only in Dutch).

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Annulment of the decision on the merits No. 31/2022 of March 4, 2022, of the Litigation Chamber.

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The Market Court asserts that there is a legality and material motivation issue because, after the decision to sit with three members in accordance with Article 43 of the Internal Rules of Procedure, the president of the Litigation Chamber made a new decision to render the decision on the merits sitting alone, given that a conflict of interest was identified concerning one of the sitting members between

the hearing and the deliberation regarding the decision. Furthermore, the Market Court notes that the annulled decision does not respect the precautionary principle, the principle of fair play, the obligation to hear, and the right to contradiction, as at no time before the conclusion of the synthesis were the defendants informed that violations of the transparency obligation defined in Articles 5.1 a), 12.1, and 14.1 a) of the GDPR were being alleged against them.

32. Following the ruling, the Litigation Chamber decided on December 21, 2022, to proceed with the re-examination of the case in order to make a new decision. The consideration underlying this decision for re-examination lies in the fact that notwithstanding the annulment of the aforementioned decision by the ruling of the Market Court, the Litigation Chamber is still seized of the initial complaint filed on November 5, 2020, which was declared admissible on January 18, 2021. To this end, the debates were reopened, and new deadlines for conclusions were set, so that the parties could:

- adopt a viewpoint regarding the legal basis on which the City of Kortrijk relies for the period from January 1, 2020, to September 1, 2020, to request personal data related to the holder of a license plate from the SPF Mobility and Transport for the identification of individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge, and the legal basis on which the SPF Mobility and Transport provided personal data to the City of Kortrijk for this purpose during the same period (Art. 6 of the GDPR), and

- specify in this regard whether, after the entry into force of the GDPR, there exists for the City of Kortrijk a sufficient legal basis to request, based on a deliberation, data from the DIV on the one hand, and for the SPF Mobility and Transport, General Directorate of Road Transport and Road Safety, to communicate data based on a deliberation on the other hand, in light of Article 6.1.e in conjunction with 6.3 of the GDPR (legal basis of public interest) and Article 24 of the GDPR (accountability),

- and also specify how the complainant was informed of the identity of the data controller and the legal basis in light of the principles of legality, fairness, and transparency (Articles 5.1 a)12, 12.113, and 14.1 a) and c) of the GDPR) as well as how the principle of accountability was respected (Article 5.2 and 24 of the GDPR).

The parties are informed of the following deadlines for conclusions:

- the deadline for the receipt of the complainant's response conclusions is set for January 24, 2023;

- the deadline for the receipt of the defendants' reply conclusions is set for February 28, 2023;
The date of the hearing is also set for March 22, 2023.

33. On January 24, 2023, the Litigation Chamber receives from the complainant the conclusions in which he presents his viewpoint regarding the three points as outlined in the letter from the Litigation Chamber dated December 21, 2022.

34. On February 28, 2023, the Litigation Chamber receives the response conclusions from defendant 1, as well as the response from defendant 2 to the requested information.

35. On March 22, 2023, the parties, represented by their lawyers, are heard by the Litigation Chamber.

36. On April 5, 2023, the hearing minutes are transmitted to the parties, in accordance with Article 54 of the internal rules. On April 12, 2023, both defendants submit their remarks regarding the minutes to the Litigation Chamber, which decides to include them in its deliberation.

II. Motivation

a) Competence of the Data Protection Authority

12 Article 5.1.a) of the GDPR. "Personal data must be:

a)

processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);"

[...]

13 Article 12.1 of the GDPR.

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37. In its judgment of October 26, 2022, the Market Court annulled the decision on the merits no. 31/2022 of March 4, 2022, on procedural grounds, but ruled in the same judgment that the argument raised by Defendant 1, which contests the competence of the Data Protection Authority (DPA) to ensure compliance with the GDPR by municipalities and asserts that only the Flemish Control Commission is competent to oversee the processing of personal data by Flemish municipalities and to handle complaints in this regard in accordance with Article 10/1, § 1 and Article 10/7, § 4 of the decree of July 18, 2008, on the electronic exchange of administrative data, is legally unfounded. The complete annulment of the decision on the merits no. 31/2022, while simultaneously confirming by the Market Court that the DPA, and thus the Litigation Chamber, is indeed competent to hear a complaint regarding the processing of personal data by a Flemish municipality leads the Litigation Chamber to reinstate its previous decision in this regard.

38. The defendants argue that the Data Protection Authority, including its bodies and therefore also the Litigation Chamber, would not be competent in this case. Indeed, the defendants assert that the Flemish Control Commission is competent to oversee compliance with legal (and constitutional) provisions and other regulatory provisions regarding the protection of personal data by an entity such as that referred to in Article 10/1, § 1 of the decree of July 18, 2008, on the electronic exchange of administrative data (hereinafter: the "decree of July 18, 2008") when this oversight falls under a federated competence.

39. As already stated in its decision 15/2020 of April 15, 2020, the Data Protection Authority is competent to handle this case.

Regulatory Competences in the Field of Personal Data Protection

40. First and foremost, the Litigation Chamber emphasizes that the GDPR is a regulation that is directly applicable in the Union and cannot be transposed into national law by Member States. The provisions of the GDPR cannot be specified in national regulation either.

14 See Article 10/1 of the decree of July 18, 2008, on the electronic exchange of administrative data, as inserted by Article 20 of the decree of June 8, 2018, containing the adjustment of decrees to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter the "GDPR Decree"). M.B., June 26, 2018.

15 <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-15-2020.pdf>, §§ 32-35 and 66 and following. See also Decision 23/2022, § 6, <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-23-2022.pdf>.
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except in relation to the points for which the GDPR expressly permits. Data protection has therefore, in principle, become a matter governed by European law.¹⁶

41. The promulgation of any regulatory provisions regarding personal data by the federal authority or a federated authority must therefore take place within the framework defined by the GDPR. In this regard, the Contentious Chamber refers to Article 22 of the Constitution and the consistent jurisprudence of the Constitutional Court in this matter, which specifies that the right to respect for private life, as guaranteed by Article 22 of the Constitution (as well as in treaties), has a broad scope and includes, in particular, the protection of personal data and personal information.¹⁷

42. Regarding the right to respect for private life, Article 22 of the Constitution states the following: "Everyone has the right to respect for their private and family life, except in cases and conditions provided for by law.

The law, decree, or regulation referred to in Article 134 guarantees the protection of this right."

43. Given that Article 22 of the Constitution is subsequent to the state reform of 1980, the term "law" in

this provision refers to a federal law. Limitations on the rights guaranteed by this constitutional provision cannot, in principle, be established by a decree or an order. This would mean that an interference in private life – including the processing of personal data – cannot result from decrees or orders.¹⁸

44. Since such an interpretation would undermine the powers of the communities and regions, the Constitutional Court and the legislative section of the Council of State, in particular, have deemed that the establishment of general limitations is a matter reserved for the federal legislator. The federated entities retain, in this case, the possibility, within the framework of their competencies, to provide for specific limitations, provided that they respect the general federal framework.¹⁹

45. In summary, the Contentious Chamber notes that the federal authority and the regions and communities are competent to enact, respectively, general and specific rules regarding the protection of private and family life, and this only concerning the points authorized by the

16 See for example C. KUNER, L.A. BYGRAVE, and C. DOCKSEY (eds.), *The EU General Data Protection Regulation: A Commentary*, Oxford University Press, 2020, 54-56.

17 See for example Constitutional Court, No. 29/2018, March 15, 2018, B.11; No. 104/2018, July 19, 2018, B.21; No. 153/2018, November 8, 2018, 153/2018, B.9.1. See also A. ALEN and K. MUYLLE, *Handbook of Belgian Constitutional Law*, Kluwer 2011, p. 917 e.s.

18 A. ALEN and K. MUYLLE, *Handbook of Belgian Constitutional Law*, Mechelen, Kluwer, 2011, 918; K. REYBROUCK and S. SOTTIAUX, *The Federal Competences*, Antwerp, Intersentia, 2019, 122; J. VANDE LANOTTE, G. GOEDERTIER, Y. HAECK, J. GOOSSENS, and T. DE PELSMAEKER, *Belgian Public Law*, Bruges, die Keure, 2015, 449.

19 Arbitration Court, No. 50/2003, April 30, 2003, B.8.10; No. 51/2003, April 30, 2003, B.4.12; No. 162/2004, October 20, 2004, and 16/2005, January 19, 2005; Constitutional Court, October 20, 2004, February 14, 2008; Opinion of the Council of State No. 37.288/3 of July 15, 2004, Doc. Parl. Parl. Fl. 2005-2006, No. 531/1: “[...] the communities and the regions [are] only competent [...] to allow and regulate specific limitations of the right to respect for private life insofar as they adapt or supplement the federally determined basic standards, but [...] they [are] not competent [...] to undermine those federal basic standards.”

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GDPR and in compliance with the rules of the GDPR that apply directly within the Belgian legal order. Even when specific rules on the protection of personal data are established by the federated authorities within the framework permitted by the GDPR, the general rules arising from federal legislation on the protection of personal data must be respected.

Control Authorities in the Context of Personal Data Protection

46. The defendant refers to Article 57, paragraph 1, f of the GDPR and to Article 51, paragraph 1 of the GDPR, from which it follows that all Member States determine which public authority must exercise control functions and that it is possible to designate more than one control authority.

47. Following the GDPR, the law of December 3, 2017 establishing the Data Protection Authority was adopted. The DPA was thus created under Article 4, § 1, first paragraph of the LCA. It is true that, as explicitly confirmed by Article 4, § 1, second paragraph of the LCA, the federated entities themselves can also create data protection authorities, as also indicated by the Council of State in its opinion No. 61.267/2/AV of June 27, 2017 (see below). In execution of this article, the Flemish legislator created the Flemish Control Commission (hereinafter: "VTC" - Vlaamse Toezichtcommissie) by Article 10/1 of the decree of June 8, 2018.

Control Competences of the Control Authorities

48. Given the concurrent competences outlined above regarding the protection of personal data, Article 141 of the Constitution charges the legislator with establishing a procedure to prevent conflicts of competence between legislative norms. This task has been entrusted to the legislative section of the Council of State. Regarding the competences of the aforementioned control authorities, the Contentious Chamber refers to opinion No. 61.267/2/AV.

20 J. VAN PRAET, *De latente staatshervorming*, Brugge, die Keure, 2011, 249-250.

21 M.B., January 10, 2018.

22 Opinion of the Council of State No. 61.267/2 of June 27, 2017 on a draft law "reforming the Commission for the Protection of Privacy," role number 7.1-7.2. See also, for example, the opinion of the Council of State No. 66.033/1/AV of June 3, 2019 on a draft decree of the Flemish Government of December 10, 2010 "implementing the decree on private placement, regarding the establishment of a registration obligation for sports agents," 4; Opinion of the Council of State No. 66.277/1 of July 2, 2019 on a draft decree of the Flemish Government "regarding the modalities concerning the processing, storage, and evidentiary value of electronic data related to allowances within the framework of family policy," 6-7.

23 M.B., June 26, 2018.

24 Article 141 of the Const.: "The law organizes the procedure aimed at preventing conflicts between the law, the decree, and the rules referred to in Article 134, as well as between decrees among themselves and between the rules referred to in Article 134 among themselves."

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of June 27, 2017, from the legislative section of the Council of State, which was issued in the context of the draft legislation that led to the LCA. In this opinion, the Council examined in detail the rules regarding the distribution of competencies in data protection oversight.

49. The Council of State stated in the aforementioned opinion that the federal authority could establish a supervisory authority with "general competence (...) for all processing of personal data, including those that occur in matters for which the communities and regions are competent." Such regulation does not prejudice the competence of the communities and regions, [...]" Therefore, according to the Council of State, the supervisory authorities of the federated entities may only be authorized to exercise oversight of the specific rules that the federated entities have enacted for data processing in activities that fall within their competence, and this, of course, only to the extent that the GDPR still allows member states to establish specific provisions and that the provisions of the LCA are not infringed. The Council of State thus confirms its position in opinion no. 37.288/3 of July 15, 2004, cited in opinion no. 61.267/2/AV of June 27, 2017, in which the Council of State considered the following regarding the competence of the Privacy Protection Commission (hereinafter: "CPVP"), the predecessor of the APD:

"The authors of the draft rightly start from the principle that the legislative authority cannot encroach upon the competencies of the Privacy Protection Commission, established by the law of December 8, 1992. To implement the directive, the federal legislator was able to create a supervisory body with general authority over all processing of personal data, including those that occur in matters falling under the competence of the communities and regions."

50. In short, as the federal supervisory authority, the APD is the competent body to oversee the general rules, including the binding provisions of the GDPR that do not require any further national implementation. This is also the case if the data processing concerns a matter that falls under the competence of the communities or regions and/or if the data controller is a public authority that falls under the communities or regions, such as a municipality, even if the federated entity has itself established a supervisory authority within the meaning of the GDPR.

25 Ibid., 8, p. 28/45.

26 Ibid., 8, role number 5, referring to the opinion of the Council of State no. 37.288/3 of July 15, 2004, on a draft decree "regarding the Health information system," Doc. Parl., Parl. Fl. 2005-06, no. 531/1, 153 e.s.

27 Ibid., 8, role number 6.

28 Council of State, opinion no. 37.288/3 of July 15, 2004.

29 See also, for example, the opinion of the Council of State no. 66.033/1/AV of June 3, 2019, on a draft decree of the Flemish Government of December 10, 2010, "regarding the implementation of the decree on private placement, concerning the establishment of a registration obligation for sports agents," 5; Opinion of the Council of State no. 66.277/1 of July 2, 2019, on a draft decree of the

Flemish Government "regarding the modalities concerning the processing, retention, and evidential force of electronic data related to allowances under family policy," 7.

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51. In light of the above, the Contentious Chamber concludes that for a supervisory authority of a federated entity to be competent, it is far from sufficient that the processing of data concerns a matter of a federated entity, in this case, the matter of supplementary traffic regulations. Furthermore, the federated entity in question must also have enacted specific rules for the processing of personal data within the framework of this matter, within the margin left by the GDPR to Member States. Only the oversight of compliance with these specific rules adopted by the federated entities can be entrusted to the supervisory authority of the federated entity.

52. The Contentious Chamber emphasizes that the notion of 'specific rules' cannot be subject to an overly broad interpretation. It follows from the cited opinion of the Council of State that the notion of 'specific rules' refers to specific limitations or particular guarantees that deviate from or go beyond the general provisions, guarantees, and limitations set forth in or arising from the GDPR or federal legislation. In other words, the mere fact that federated entities implement or confirm a general rule (by decree or order) does not mean that this rule is granted the status of a 'specific rule.' A specific rule is only present when federated entities establish additional guarantees or limitations using the margin left for this purpose by the GDPR.

53. Additionally, any potential limitations on the powers of a data protection authority under the GDPR would only be possible if a supervisory authority that meets all the requirements imposed on supervisory authorities under the European Treaties and has been entrusted with all the missions and powers of a supervisory authority were created at the level of a federated entity. In this regard, reference should primarily be made to Articles 51 to 59 inclusive of the GDPR.

54. The Contentious Chamber notes that the contested processing was carried out based on three general deliberations granted by the sectoral committee established within the Commission for the Protection of Privacy. The CPVP and the sectoral committees were abolished by the law of July 30, 2018, concerning the protection of natural persons with regard to the processing of personal data. The authorizations and the relevant processing of personal data by the defendant within the framework of the authorizations in question, namely the communication of data from the Vehicle Crossroads Bank - including the license plate - to the data controller who requested it within the scope of their competencies regarding supplementary parking regulations, must therefore be

30 Deliberation AF No. 02/2016 of January 21, 2016, Deliberation AF No. 14/2016 of January 21, 2016, and Deliberation AF No. 18/2015 of May 28, 2015.

31 Article 280 of the law of July 30, 2018, concerning the protection of natural persons with regard to the processing of personal data.

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assessed in light of the new legal framework, namely the provisions of the GDPR, and this since May 25, 2018.

55. Under the current legal framework, and more specifically pursuant to Article 35/1 of the law of August 15, 2012, relating to the creation and organization of a federal service integrator, and the law of September 5, 2018, establishing the information security committee, the Information Security Committee (hereinafter: "ISC") is notably competent to issue deliberations concerning certain communications of personal data, including the communication of data included in the Vehicle Registration Database. Article 35/1, § 4 of the Federal Service Integrator Law specifies that "The deliberations of the information security committee are reasoned and have a binding general scope between the parties and towards third parties." Based on the same article, the Data Protection Authority may at any time review any deliberation of the Information Security Committee, regardless of the date it was granted, in relation to higher legal standards, such as the GDPR. Consequently, the Litigation Chamber is competent to assess whether the authorizations and the processing carried out on this basis comply with the obligations set forth by the GDPR.

56. In light of the above, the Litigation Chamber concludes that this matter does not concern the verification of data processing by an authority in accordance with Article 10/1, § 1 of the decree of July 18, 2008, relating to the electronic exchange of administrative data in light of a specific rule developed by the federated authority within the scope of its federated competence. As demonstrated, the authorizations in question are of a general nature, and their review in relation to the GDPR, as well as that of the personal data processing carried out on this basis, therefore falls under the jurisdiction of the Litigation Chamber.

b) Data Controllers

57. Defendant 2 believes it can deduce from the ruling of the Market Court of October 26, 2022, that the present decision can only concern Defendant 1, as the Court ordered in the dispositif a re-examination of the complaint "against the City of Kortrijk" (i.e., Defendant 1). Given that the new procedure before the Litigation Chamber addresses, through the letter of December 21, 2022, announcing the reopening of discussions, both Defendant 1 and Defendant 2, Defendant 2 objects that the Litigation Chamber thus exceeds the order of the Market Court.

32 M.B., August 28, 2012.

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58. The Contentious Chamber refutes this by emphasizing that the appeal before the Market Court against the decision on the merits no. 31/2022 was initiated solely by Defendant 1, albeit with a forced intervention from Defendant 2 in order to express its views and to declare the joint ruling without submitting requests regarding its subjective rights for this purpose. It follows that the ruling only addresses "the appeal brought by the City of Kortrijk" and "orders the Contentious Chamber of the Data Protection Authority to re-examine, in a different composition, the complaint against the City of Kortrijk, taking into account the considerations of the Market Court." The Market Court cannot indeed rule on any appeal brought by Defendant 2, as no such appeal was initiated by it. Furthermore, the Market Court does not at any point in the ruling assert that Defendant 2, in the context of the initially filed complaint, did not act as a data controller within the meaning of Article 4.7) of the GDPR. On the contrary, the ruling systematically refers to "the City of Kortrijk and the SPF." The ruling must therefore be understood to mean that, following the annulment of decision no. 31/2022 which concerns both defendants and the declaration of a joint ruling regarding Defendant 2, subsequent to the appeal initiated by Defendant 1, the proceedings before the Contentious Chamber concern both defendants, given the order of the Market Court.

59. Although Defendant 2 maintains that it was not targeted by the complaint and that it only concerned Defendant 1, the Contentious Chamber cannot follow this argumentation. It is indeed established that Defendant 1 would not have been able to send the complainant the tax notice regarding parking fees – which constitutes the actual origin of the complaint – without the communication by Defendant 2 of the complainant's identification data to Defendant 1. The complainant rightly questions on what legal basis Defendant 1 relies for the period from January 1, 2020, to September 1, 2020, to request from Defendant 2 personal data related to the holder of a license plate for the identification of individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge, and on what legal basis Defendant 2 provided personal data to Defendant 1 for this purpose during the same period. The complainant believes not only that Defendant 1 could not request his personal data from Defendant 2, but also that Defendant 2 could not provide his personal data to Defendant 1 at the time when the latter made such a request to Defendant 2. In other words, the processing of the complainant's identification data by Defendant 1 in order to send him a tax notice regarding parking fees was not possible without prior transmission by Defendant 2 of this identification data to Defendant 1. Defendant 2 believes it can support its argumentation by the complainant's request to impose a sanction on Defendant 1, but thus ignores the concrete account of the facts provided by the complainant, from which it undeniably emerges that Defendant 1 could only process the complainant's identification data after their transmission.

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Transmission by defendant 2. It is therefore appropriate to conclude that both the City of Kortrijk (defendant 1) and the SPF Mobility and Transport (defendant 2) must be qualified as defendants.

c) Rights of the defense and principles of good administration

Background

60. The Market Court states in its judgment that both in the conclusions and during the hearing of the Contentious Chamber, the debate was limited to the question of the legal basis defined in Article 6.1 of the GDPR and the fact that the Contentious Chamber, if that was its reading of the complainant's conclusions, should have informed defendant 1 and defendant 2 in writing that, by this formulation, they were also accused of violations of Articles 5.1 a), 12.1, and 14.1 a) of the GDPR in order to respect the precautionary principle, the principle of fair play, the obligation to hear, and the right to contradiction. Given the complete annulment of the decision on the merits No. 31/2022, the Contentious Chamber also reiterates below its considerations regarding the rights of the defense and the principles of good administration that were previously raised prior to the decision on the merits No. 31/2022, adding its new considerations after the resumption of the file and the conclusions received in the context of the reopening of the debates, as well as its considerations regarding the legal basis and additionally its considerations regarding the obligation of transparency.

The complaint

61. Defendant 1 argues that there has been a violation of the rights of the defense because it does not clearly know against which complaint it must defend itself. Defendant 1 claims that three complaints were filed by the complainant and refers to the documents submitted by the complainant on August 10, 2020, November 5, 2020, and December 7, 2020.

62. In this regard, the Contentious Chamber notes that the complainant initially attempted to file his complaint on August 10, 2020, but since the complaint only concerned the last page of the complaint form—which contains only the date of the complaint, the signature, and the name and surname of the complainant—the complainant submitted the complete complaint form on November 5, 2020.

Subsequently, on December 6, 2020, the complainant submitted documents in support of his complaint filed on November 5, 2020. Contrary to what defendant 1 claims, the complainant therefore only filed one complaint, namely the one that was submitted in its entirety on November 5, 2020. This complaint was therefore attached to the letter sent to the parties on February 25, 2021, which established the timetable for the conclusions and requested the introduction of defenses. It was only after the complaint had been filed in its entirety and the complainant had provided the necessary supporting documents that the complaint could be declared admissible by the First Line Service, as was done. Furthermore, defendant 1 received a copy of the file, so it had all the elements to assert its defense.

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63. Defendant 1 argues in its conclusions of February 28, 2023, that both the letter of December 21, 2022, from the Contentious Chamber, with the questions to the parties and the reopening of the debates, and the subsequent conclusions of the complainant, which Defendant 1 claims contain additional accusations, are inadmissible due to an unlawful extension of the jurisdiction of the Contentious Chamber. Defendant 2 also argues that the question posed by the Contentious Chamber regarding whether, after the entry into force of the GDPR, there was a sufficient legal basis for communicating data based on a deliberation, in light of Article 6.1 e) in conjunction with Article 6.3 of the GDPR and Article 24 of the GDPR, is not part of the complainant's complaint.

64. The Contentious Chamber emphasizes that the ruling of the Market Court of October 26, 2022, expressly states the following:

"It cannot indeed be deduced from these very summary formulations that the complainant accused the City of Kortrijk and the SPF of violations of the transparency obligation defined in Articles 5.1 a), 12.1, and 14.1 a) of the GDPR. In any case, these articles of the GDPR are not mentioned, and the Contentious Chamber, if that was its reading of the complainant's conclusions, should have informed the City of Kortrijk and the SPF in writing that by these formulations, they were accused of violations of these relevant legal articles."

65. However, according to the reading of the Contentious Chamber (of the complaint and the complainant's conclusions), the complainant objects that he has been left completely unaware of the legal basis on which the processing of his personal data is based. Given that the complainant has absolutely no idea on what legal basis the defendants are processing his personal data, it follows ipso facto that, regarding this legal basis and the identity of the data controller, particularly Defendant 1, which invokes succession in law, the required transparency is also lacking. Since the defendant parties invoked, in their preliminary conclusions to the decision on the merits No. 31/2022, the existence of deliberations as a legal basis while associating it with the principle of succession in law concerning Defendant 1, the Contentious Chamber logically asked whether a deliberation could constitute a sufficient legal basis in light of the GDPR.

66. In view of the aforementioned citation from the ruling of the Market Court and the fact that the Market Court orders the Contentious Chamber to re-examine the complaint taking into account the considerations of the Market Court, the Contentious Chamber complied with the ruling by submitting to the parties the three questions as set out in the letter of December 21, 2022, in order to adopt a viewpoint in this regard. In no way does the Contentious Chamber exceed its jurisdiction, contrary to what the defendants attempt to assert. The three questions specifically and meticulously aim to ascertain, within the limits of the complaint in question, the legal basis defined in the GDPR, as well as the extent to which the defendants ensure the transparency of this legal basis and the identity of the data controller.

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67. Defendant 1 further asserts in the conclusions of February 28, 2023, that she must deduce from various complaint forms, emails, and non-harmonized letters which factual and legal violations are attributed to her, in order to attempt to have the complaint declared inadmissible, or at least to reject it as unfounded. In this regard, the Contentious Chamber emphasizes that the complaint was filed by a citizen for whom it is not required that the complaint indicate the legal provisions against which the complainant believes a violation has occurred. However, based on the subsequent procedure and the documents³³, including the decision on the merits No. 31/2022 and the letter dated December 21, 2022, it is perfectly clear what the defendants must defend against. The fact that the defendants, including Defendant 1, have a full understanding of the potential violations attributed to them is also evident from the detailed account provided by the defendants regarding the merits of the complaint.

68. The Contentious Chamber adds that it fully complies with the ruling of the Market Court dated October 26, 2022, by making the present decision with a different composition than that of the decision on the merits No. 31/2022 made on March 4, 2022. In this regard, Defendant 1 believes she must reserve all rights concerning the letter dated December 21, 2022, which the Contentious Chamber sent to the parties to inform them of the new composition, from which Mr. Hielke Hijmans, who made the decision on the merits No. 31/2022 as the president of the Contentious Chamber sitting alone, is not a part. The fact that said letter was signed by Mr. Hielke Hijmans leads Defendant 1 to reserve all rights in this matter.

69. The Contentious Chamber emphasizes that by acting in this manner, the president of the Contentious Chamber simply executed Article 43 of the internal regulations. It is indeed the president of the Contentious Chamber who decides on the allocation of cases among the members of the Contentious Chamber and who decides that the Contentious Chamber sits with three members. This decision by the president of the Contentious Chamber is strictly necessary to define the composition and to comply with the order of the Market Court to re-examine the complaint with a different composition, which subsequently took place, as mandated, without any intervention from Mr. Hielke Hijmans.

Decision on Admissibility and Decision that the Case Can Be Addressed on the Merits

70. Defendant 1 argues that the "presumed" decision, according to her, of the Frontline Service does not clarify the facts or the alleged violations. Defendant 1 also considers that she cannot deduce from the letter of the Contentious Chamber dated February 25, 2021, what the alleged violations are or what

the potential sanctions would be. Defendant 1 adds that she does not know if there is still an effective decision from the Frontline Service and that she has not been informed of any decision from the Contentious Chamber regarding the extent to which the

33 Ruling of the Market Court 2022/AR/292
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The case could be addressed on the merits. This leads Defendant 1 to conclude that the rights of the defense have been violated, as well as the principles of good administration.

71. The Contentious Chamber explains that the decision of the First-Line Service regarding the admissibility of the complaint is included in an email sent to the Contentious Chamber, and that the email in question is fully part of the administrative file. Following this email, the Contentious Chamber initiated the examination procedure on the merits. The Contentious Chamber uses a single letter to inform the parties (both the complainant and the defendants) of the admissibility of the complaint in accordance with Article 61 of the LCA - this provision requires *sensu stricto* that only the complainant be informed of the admissibility of their complaint - as well as the initiation of the procedure on the merits, including all information in accordance with Article 98 of the LCA in conjunction with Article 95, § 2 of the LCA.

72. Regarding the decision on admissibility as well as the decision that the case can be addressed on the merits, the Contentious Chamber refers to the email dated February 25, 2021, along with the letter and related documents attached as an annex, in which the parties are explicitly informed that the complaint was declared admissible on January 18, 2021, by the First-Line Service and that the Contentious Chamber has decided that the case can be addressed on the merits. This means that the letter with the schedule for conclusions serves as such a notification to the parties, both of the decision regarding admissibility and of the decision that the case can be examined on the merits, so that both Article 61 of the LCA and Article 98 of the LCA in conjunction with Article 95, § 2 have been respected. To the extent that Defendant 1 argues that neither the decision of the First-Line Service on admissibility nor the decision of the Contentious Chamber on the state of readiness for a merits examination indicate the grounds on which they are based, the Contentious Chamber must remind that the aforementioned decisions of the First-Line Service, on the one hand, and of the Contentious Chamber, on the other hand, are not final decisions, but simply decisions that precede the final decision of the Contentious Chamber. The decision regarding the admissibility of the complaint is a decision made by the First-Line Service in which it is verified, based on the submitted documents, whether Article 58, first paragraph³⁴ and Article 60, second paragraph³⁵ of the LCA

34 Article 58. Any person may submit a complaint or a written request, dated and signed, to the Data Protection Authority.

[...]

35 Article 60. [...]

A complaint is admissible when it:

- is drafted in one of the national languages;
- contains a statement of facts and the necessary indications to identify the processing to which it relates;
- falls within the competence of the Data Protection Authority.

[...]

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are respected. The letter outlining the schedule for conclusions contains all the information required by Article 98 of the LCA and specifically aims to justify the decision of the Contentious Chamber, based on the defenses raised by the parties, while respecting the rights of the defense. This decision must be justified as such.

73. Defendant 1 also argues that it does not understand why the Contentious Chamber did not decide to address the complaint in another manner. The Contentious Chamber emphasizes that there is in no case an obligation for negative justification, so it is not required to explain why it did not resort to the other possibilities provided for in Article 95, § 1 of the LCA.

d) Legal Basis and Obligation of Transparency

74. The complainant questions on what legal basis Defendant 1 relies, for the period from January 1, 2020, to September 1, 2020, to request from Defendant 2 personal data concerning the holder of a license plate for the purpose of identifying individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge, and on what legal basis Defendant 2 communicated personal data to Defendant 1 for this purpose, for the same period.

Deliberation and Succession in Law

75. Defendant 1 relies on deliberation AF No. 02/2016 of January 21, 2016, as well as deliberation AF No. 18/2015 of May 28, 2015, to argue that it already had its own access to the DIV registry for the purpose of identifying individuals liable, due to the use of a vehicle, for a parking fee.

76. As Defendant 1 itself points out, the beneficiaries of deliberation AF No. 02/2016 are the private concessionaires of Flemish cities and municipalities, as well as the autonomous municipal agencies. As an autonomous municipal management body, RCA Parko is an external autonomous agency of Defendant 1 and, as such, RCA Parko adhered to deliberation AF No. 17/2010 on May 5, 2015, which was replaced by deliberation AF No. 02/2016, but which maintained deliberation AF No. 17/2010 regarding the validity of commitment declarations.

36 Deliberation granting a unique authorization and amending, concerning the private concessionaires of Flemish cities and municipalities and the Flemish autonomous municipal agencies, deliberation AF No. 17/2010 of October 21, 2010.

37 Deliberation granting a unique authorization for Cities and Municipalities, autonomous municipal management bodies, and the Parking Agency of the Brussels-Capital Region to electronically receive personal data from the Directorate for Vehicle Registration (hereinafter "DIV") in order to identify and sanction offenders of municipal regulations or ordinances.

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approved individuals, including that of RCA Parko. This means that RCA Parko is the beneficiary of deliberation AF No. 02/2016 and is therefore authorized to receive from the Directorate for Vehicle Registration (DIV) identification data of holders of a registered vehicle who owe a fee or tax. Defendant 1 could not itself adhere to this authorization since it does not fall within the category of possible beneficiaries of this particular deliberation.

77. Defendant 1, for its part, is a beneficiary of deliberation AF No. 18/2015, but this concerns the authorization to obtain the communication of personal data from the DIV for the purpose of identifying and sanctioning violators of municipal regulations or ordinances under the law of June 24, 2013, relating to municipal administrative sanctions. This means that Defendant 1 can obtain data from the DIV based on this deliberation, but only within the limits of imposing municipal administrative sanctions and therefore not for collecting a parking fee, as in the present case.

78. Based on these elements, the Contentious Chamber finds that Defendant 1 is attempting to demonstrate that it had, at the time of the events that led to the complaint, an authorization to access the DIV directory for the identification of individuals, in this case, the complainant, who, due to the use of a vehicle, owe rights, taxes, or parking fees, relying, on the one hand, on a deliberation of which Defendant 1 is not itself a beneficiary (Deliberation AF No. 02/2016) and, on the other hand, on a deliberation of which Defendant 1 is indeed a beneficiary, but which does not authorize it to obtain data from the DIV for the purpose of collecting a parking fee (Deliberation AF No. 18/2015).

79. Such an argument whereby Defendant 1 combines the two aforementioned deliberations to then assert that it was authorized to request the identification data of the complainant from the DIV for the purpose of collecting the parking fee owed to it cannot, however, be accepted, as explained below.

80. To the extent that Defendant 1 argues that, given the dissolution and liquidation of RCA Parko effective January 1, 2020, and its integration into the city services, it has since then taken over the rights and obligations, including those provided for in deliberation AF No. 02/2016, as the legal successor of RCA Parko, the Contentious Chamber can establish, based on Article 244, § 3, of the decree of December 22, 2017, on local administration³⁸, that Defendant 1 was by law the legal

successor of RCA Parko, as confirmed by the decision of the municipal council of Defendant 1.

38 Art. 244, § 3. The rights and obligations of the dissolved autonomous municipal management are taken over by the municipality.

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81. Regarding the succession in law, Defendant 1 refers to Opinion No. 14/2004 and Recommendation No. 03/2015 of the Commission for the Protection of Privacy, which establish the principle that the successor in law does not need to request a new authorization as long as the purpose for which the successor in law processes the personal data in question remains unchanged, allowing them to use the authorization granted to their predecessor in law.

82. However, the Contentious Chamber must note that Recommendation No. 03/2015 stipulates as a condition for the continuation of the existing authorization by the successor in law - that is, without the latter needing to request a new authorization - that the competent sectoral committee must be able to assess whether the applicant wishing to continue using the existing authorization is indeed the successor in law. Furthermore, the sectoral committee must be able to evaluate whether the successor in law provides sufficient guarantees regarding security. In this regard, Defendant 1 itself refers to Deliberation AF No. 31/2015 of December 10, 2015, which refers to Opinion No. 14/2004, but fails to demonstrate that such notification of the succession in law has taken place, so that no assessment of the aforementioned conditions has been carried out. These conditions are, however, expressly reiterated in Recommendation No. 03/2015, but they have not been complied with by Defendant 1, which neither notified the succession in law nor demonstrated the necessary security guarantees concerning Deliberation AF No. 02/2016. It follows that Defendant 1 cannot validly invoke Deliberation AF No. 02/2016 to obtain data from Defendant 2 for the purpose of collecting a parking fee against the complainant.

83. Regarding Opinion No. 14/2004 and Recommendation No. 03/2015, the Contentious Chamber specifies that, although they do not have a directly enforceable legal character, they must be examined in the current legal context, which requires assessing whether the requirements of the GDPR are met, particularly regarding the obligation of transparency (Articles 5.1, a) of the GDPR, 12.1 of the GDPR).

39 Opinion No. 14/2004 of November 25, 2004, concerning the request for an opinion from the President of the Management Committee of the Federal Public Service Personnel and Organization regarding the Royal Decree of January 29, 1991, which authorizes certain members of the staff of the Ministry of the Interior and Public Service to access information from the National Register of Natural Persons and to use the identification number of the National Register: can this Royal Decree constitute a sufficient legal basis to authorize the General Directorate e-HR of the Federal Public Service Personnel and Organization to access information from the National Register of Natural Persons and to use the National Register number in the context of carrying out tasks related to the execution of Royal Decree No. 141 of December 30, 1982, establishing a database concerning members of the public sector staff.

40 Recommendation No. 03/2015 of February 25, 2015, concerning the procedure to be followed for authorizations, both by sectoral committees, regional service integrators, and federated administrations, in the context of the transfer of competencies following the Sixth State Reform.

41 Deliberation AF No. 31/2015 of December 10, 2015, concerning the request made by the "Vlaamse Belastingdienst" (Flemish Tax Service) to be able to use, as the successor in law of the Department of Finance and Budget of the Flemish Authority, the authorization granted by Deliberations AF No. 39/2013 and 40/2013 of December 12, 2013: "In its examination, the Committee may therefore limit itself to verifying whether the applicant is the successor in law of the Department of Finance and Budget of the Flemish Authority, specifically regarding the purposes/tasks that are the subject of Deliberations AF No. 39/2013 and 40/2013. Furthermore, the Committee also examines whether the applicant provides sufficient guarantees regarding data security."

42 "In the context of a transfer of competencies, it is important to specify which authority takes over the competence, whether the transfer is made for the same purposes or only for part of them, and to provide information on security."

43 Article 5.1.a) of the GDPR. Personal data must be:

a) processed lawfully, fairly, and transparently concerning the data subject ("lawfulness, fairness, transparency");

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GDPR⁴⁴ and 14.1. a) of the GDPR⁴⁵) which requires that personal data of the data subject be processed transparently.

84. It appears from the factual elements of the case that it was absolutely unclear to the complainant that defendant 1 had requested his data from defendant 2 simply as the legal successor of RCA Parko, given that defendant 1 provided no form of transparency in this regard and it was therefore not possible for the complainant to be informed, in an easily accessible and understandable manner, about the processing of personal data concerning him by defendant 1. In light of the complete lack of necessary transparency regarding defendant 1, defendant 2 also did not have the correct information, so that the latter consequently informed the complainant on February 15, 2021, that the communication by defendant 2 of the complainant's data to defendant 1 was based on deliberation 18/2015 concerning municipal administrative sanctions and that defendant 1 did not have a legal basis for managing parking at the time of collecting the parking fee from the complainant⁴⁶. Based on the above, the Disciplinary Chamber concludes that defendant 1 committed a violation at the time of the facts of Article 5. 1 a) of the GDPR, Article 12.1 of the GDPR, and Article 14.1 a) of the GDPR, as the complainant was not informed, on the one hand, of the legal succession of RCA Parko by defendant 1, by which the latter acquired the status of data controller regarding the processing of data described in deliberation AF No. 02/2016, and, on the other hand, of the resulting data processing by defendant 1. Deliberation and GDPR

85. Since the entry into force of the GDPR⁴⁷, every data controller must comply with all the principles it contains. More specifically, a data controller must rely on one of the six legal bases listed in Article 6 of the GDPR. In the public sector, the legal basis of Article 6.1.c) (the processing is necessary for compliance with a legal obligation to which the data controller is subject) or Article 6.1.e) (the processing is necessary for the performance of a task carried out in the public interest or in the exercise of

[...]

44 Article 12.1 of the GDPR. The data controller takes appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible manner, using clear and plain language, particularly for any information specifically addressed to a child. The information is provided in writing or by other means including, where appropriate, electronically. When the data subject requests it, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

45 Article 14.1 GDPR. When personal data has not been collected from the data subject, the data controller provides the data subject with all of the following information:

a) the identity and contact details of the data controller and, where applicable, of the data controller's representative;

[...]

46 See below points 87 et seq.

47 The GDPR has been in effect since May 25, 2018 (Article 99.2 of the GDPR).

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the public authority vested in the data controller). In such cases, the processing must be based on a legal provision that meets the requirements of Article 6.3 of the GDPR.

86. The deliberations invoked by the defendants were granted by the Sectoral Committee for the Federal Authority, which has ceased to exist under Article 109 of the LCA. However, this does not detract from the fact that, in accordance with Article 111 of the LCA, it remains possible to adhere to the aforementioned general authorizations, provided that the person requesting adherence submits a written and signed commitment statement, in which they confirm that they agree to comply with the

conditions of the deliberation in question, to the Information Security Committee, which is the body created by the legislator to grant deliberations related to the exchange of personal data or the use of the National Register number.

a) Regarding Defendant 1

87. Defendant 1 has, albeit belatedly - that is, after the events that are the subject of the complaint - adhered to deliberation AF No. 14/2016 of January 21, 2016, which allows it to obtain from Defendant 2 the communication of personal data contained in the DIV directory for the identification of the complainant for the purpose of collecting the parking tax.

88. The adherence to deliberation AF No. 14/2016 only took place on August 28, 2020, well after Defendant 1 had requested and obtained the complainant's data from Defendant 2. Defendant 1 believes it can assert that the agreement concluded between Defendant 1 and Defendant 2 within the framework of this adherence on September 1, 2020, which provides for its retroactive entry into force as of January 1, 2020, is fully valid and, for this purpose, relies again on deliberation AF No. 02/2016 as its legal successor, stating that the adherence agreement to deliberation AF No. 14/2016 constitutes a mere legal confirmation of a factual situation, since, as a legal successor as of January 1, 2020, it believes it can derive rights from deliberation AF No. 02/2016, which it claims is virtually identical to deliberation AF No. 14/2016.

89. The Disciplinary Chamber can only note that at the time of the events, Defendant 1 was not authorized, either on the basis of legal succession (see above, points No. 52 - 61), or on the basis of deliberation AF No. 14/2016 in the absence of timely adherence, to request from Defendant 2 the personal data of the complainant for the purpose of identifying them in the context of a parking tax. The retroactive effect of the adherence agreement is absolutely irrelevant here. Regarding the adherence agreement, it should be noted that, contrary to what Defendant 1 claims, it can indeed be assessed by the Disciplinary Chamber to the extent that it impacts the processing of data of third parties who are not parties to

48 Deliberation granting a unique authorization for municipalities to access the DIV directory for the purpose of identifying individuals who are debtors, due to the use of a vehicle, of a fee, tax, or parking charge - Revision of deliberation AF No. 05/2015 of March 19, 2015.

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the said agreement, particularly concerning the complainant in the present case. It is established that at the time of the events that occurred on May 28, 2020, it was absolutely unclear to the complainant that Defendant 1 would conclude an adhesion agreement to deliberation AF No. 14/2016 on September 1, 2020, so that at the time of the events, the complainant did not have the information to which he is entitled under Articles 5.1, a), 12.1, and 14.1 a) of the GDPR. In this regard, the Contentious Chamber also notes that deliberation AF No. 14/2016 itself already requires that the data subjects, including the complainant, must in all cases be clearly informed of the name of the data controller, in this case, Defendant 1, the purpose of the processing, the origin of the collected data, and the existence of a right of access and rectification of the data. The deliberation adds that clear communication of information is particularly important in situations where data subjects may reasonably expect less that their personal data will be processed. It is clear from the facts that the complainant did not have this information and therefore was not aware of the legal basis on which the processing of his personal data would be based. As already indicated regarding the legal basis (see point 85), national regulations on deliberations, read in conjunction with the deliberations themselves, meet the requirements of Article 6.3 of the GDPR and must therefore be considered as specific regulation in the sense of Article 6.2 of the GDPR, but it remains that at the time of the events, Defendant 1 had not adhered to deliberation AF No. 14/2016, which implies that Defendant 1 was not a beneficiary of this deliberation and that it could not constitute the basis for requesting the complainant's data from Defendant 2. Here too, it is therefore a matter of a violation at the time of the events of Article 5.1, a), Article 6, Article 12.1, and Article 14.1 a) of the GDPR.

90. Furthermore, it is not sufficient for a data controller, in this case, Defendant 1, to have an authorization and assume that, based solely on the relevant deliberation, it has a right to the personal

data mentioned in this authorization. Since the entry into force of the GDPR, the data controller is indeed required to comply with the obligations imposed on it by the GDPR and therefore to assess the deliberation it wishes to use in light of the higher legal standard to verify whether the communication of personal data authorized by the relevant deliberation is compliant with the GDPR. In this sense, the federal chamber of the Information Security Committee also expressly informed Defendant 1 on August 28, 2020, that its adherence to deliberation AF No. 14/2016 did not exempt it from its obligations to comply with the GDPR.

91. However, it is clear from Defendant 1's defense that it has fully aligned its data processing with the relevant deliberations, relying entirely, as stated in its conclusions, on Defendant 2's position regarding the application of the three...

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deliberations⁴⁹ that it invokes. For example, Defendant 1 indicates that both before and after the integration of RCA Parko into the city services, it inquired with Defendant 2 whether any additional formalities needed to be completed. The Disciplinary Chamber notes that Defendant 1 indeed contacted Defendant 2 on December 2, 2019. In this regard, Defendant 1 argues that it is taking over the parking policy itself and that it already has an agreement with the Vehicle Registration Office for the identification of holders of license plates who owe a fee, tax, or parking charge to the cities and municipalities, ..., thus referring to deliberation AF No. 18/2015 revised - according to Defendant 1 - by deliberation AF No. 14/2016. In this respect, the Disciplinary Chamber must also note that Defendant 1 incorrectly establishes a link between, on the one hand, deliberation AF No. 18/2015 concerning municipal administrative sanctions to which it adhered and, on the other hand, deliberation AF No. 14/2016 concerning rights, taxes, and parking charges, of which it was not the beneficiary at that time. Defendant 1 therefore presents a misleading account of the facts by claiming that deliberation AF No. 18/2015 would have been revised by deliberation AF No. 14/2016. Defendant 2 does not point this out and asserts that Defendant 1 does not need to undertake any further action. On June 26, 2020, Defendant 2 reaffirms that Defendant 1 has access to the DIV directory, but does not specify on which deliberation this access is based.

92. Defendant 1 takes refuge behind the fact that, despite two prior confirmations from Defendant 2, it did not have the appropriate authorization to consult the DIV directory in order to sanction violations of the municipal parking fee regulation, but that the absence of the said authorization is based on a misunderstanding. It adds that the city could and should rely on the accuracy of the message from the DIV which confirms in writing that the required authorization on the part of the city was in order⁵⁰.

93. It is only at the moment when Defendant 2 considers it appropriate for Defendant 1 to adhere to deliberation AF No. 14/2016 that Defendant 1 actually does so, but long after the events presented by the complainant occurred.

94. Defendant 1 then also attempts to shift its own responsibility onto the Sectoral Committee for the Federal Authority and the SPF Strategy and Support. Thus, Defendant 1 argues that

49 Deliberation AF No. 02/2016 of January 21, 2016, granting unique authorization and amending, regarding private concessionaires of Flemish cities and municipalities and the autonomous municipal agencies of Flanders, deliberation AF No. 17/2010 of October 21, 2010.

Deliberation AF No. 18/2015 of May 28, 2015, granting unique authorization for Cities and Municipalities, autonomous municipal managements, and the Parking Agency of the Brussels-Capital Region to electronically receive personal data from the Vehicle Registration Office (hereinafter "DIV") in order to identify and sanction offenders of municipal regulations or ordinances.

Deliberation AF No. 14/2016 granting unique authorization for Municipalities to access the DIV directory for the purpose of identifying individuals who are debtors, due to the use of a vehicle, of a parking fee, tax, or charge - Revision of deliberation AF No. 05/2015 of March 19, 2015.

50 Decision of the College of Mayors and Aldermen dated February 22, 2021, regarding the objection letter to the parking tax, as submitted by the complainant.

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The sectoral committee for the Federal Authority gave the impression that it had, as a city, adhered to deliberation AF No. 17/2010 - as subsequently revised by deliberation AF No. 02/2016 - by naming the city as a beneficiary in the adoption of the commitment declaration regarding deliberation AF No. 17/2010, as well as by the fact that the SPF Strategy and Support would have mentioned Defendant 1 in the list of beneficiaries on its website.

95. However, this argument is not at all convincing given that the potential beneficiaries of deliberation AF No. 17/2010 - and then of deliberation AF No. 02/2016 - cannot in any case be the municipality itself, but only private concessionaires and autonomous municipal agencies. The mention referred to by Defendant 1 is: "Parko RCA/City of Kortrijk," where the mention of the city's name only indicates the location where the actual beneficiary operates, namely RCA Parko. It is impossible for Defendant 1 to conclude that it was itself a beneficiary regarding this deliberation, given the clearly defined target group in the deliberation of possible beneficiaries, which does not include municipalities.

96. It follows from all of the above that the Contentious Chamber must find a violation of Articles 5.2 and 24 of the GDPR on the part of Defendant 1 at the time the facts occurred.

b) Regarding Defendant 1 and Defendant 2

97. A data controller is required to comply with data protection principles and must be able to demonstrate that these are respected (principle of accountability – Article 5.2 of the GDPR). Defendant 1 is a data controller regarding the personal data it requests and obtains from Defendant 2. Defendant 2 is also a data controller regarding the personal data it provides to Defendant 1. Although Defendant 2 denies being a party defendant because the complaint is directed solely against Defendant 1, there is no doubt that the complainant is targeting not only Defendant 1 but also Defendant 2, given the finding that the complainant expressly states that there has been a violation of his privacy because both Defendant 1 and Defendant 2 used an erroneous authorization as the basis for identifying him through his license plate via the DIV directory for which Defendant 2 is the data controller. There is no doubt that the complainant is targeting not only Defendant 1 but also Defendant 2, since the identification of the license plate holder is only possible if Defendant 2 provides the necessary personal data to Defendant 1. In other words: the identification of the complainant through his license plate is only possible if Defendant 1 requests the identification data from Defendant 2 and Defendant 2 subsequently also provides this identification data to Defendant 1. If Defendant 2 had not provided Defendant 1 with the complainant's identification data, it would simply not have been possible to identify the complainant based on his license plate. It is therefore in this sense that the complainant, Decision on the Merits 105/2023 - 28/30

As evidenced by the documents in the file, the complainant has addressed the defendant 2 several times. The complaint particularly concerns the identification by the license plate of the vehicle registered in the name of the complainant and thus indisputably targets defendant 1 and defendant 2.

98. Both defendants base their conclusions on Article 6.1 e) of the GDPR for the processing of data carried out by each of them (defendant 1 regarding the processing of data requested and obtained from defendant 2; defendant 2 regarding the communication of data to defendant 1). Article 6.1 of the GDPR, which embodies the principle of lawfulness referred to in Article 5.1 a) of the GDPR, requires that all processing be based on a legal basis. This means that before commencing processing activities, the data controller must determine which of the six legal grounds applies and for what specific purpose. It does not appear from the file that the complainant was informed of the legal basis on which the defendants are now relying in the proceedings before the Litigation Chamber, namely that the processing is necessary for "the performance of a task carried out in the public interest" (Article 6.1 e) of the GDPR). This legal basis is only invoked after the facts and therefore after the processing of personal data has taken place. Consequently, the defendants processed the complainant's personal data against his expectations and, therefore, without any information being provided by the defendants prior to the processing of the data. In this regard, the Litigation Chamber notes that the communication of information concerns not only the legal basis (Article 14.1 c) of the GDPR) but all the information provided for in Article 14.1 of the GDPR in order to comply with the principle of transparency (Article 5.1 a) of the GDPR).

99. Both defendants simply relied on the deliberations granted by the Sectoral Committee for the Federal Authority without any examination of the requirements imposed by the GDPR since its entry into force.

100. Based on the factual elements of the file, it appears that neither defendant 1 nor defendant 2 has assumed its responsibility regarding the principles of lawfulness, fairness, and transparency, which leads the Litigation Chamber to conclude that at the time of the facts, a violation of Articles 5.2 and 24 of the GDPR was committed by both defendants.

101. Regarding the aforementioned violations of the legal basis, the obligation of transparency, and the principle of accountability, the Litigation Chamber takes into account the circumstances invoked by defendant 1, with the determining factor being that the current privacy statement of defendant 1 includes a complete list of the authorizations on the basis of which defendant 1 can consult personal data from defendant 2, particularly the adherence to deliberation AF No. 14/2016. The invoices for the collection of parking fees have since been completed and now also include information regarding the processing of personal data. Thus, defendant 1 has demonstrated that it pays the necessary attention to the communication of information, particularly regarding the legal basis and the identity of the data controller, making every effort to avoid such violations of the GDPR in the future. This element is therefore decisive regarding the sanction that the Litigation Chamber imposes in this decision.

102. Defendant 2 also refers to its privacy statement, which includes information regarding the legal basis and the identity of the data controller. Although defendant 2 had informed the complainant by email dated February 15, 2021, that at the time of the facts, there was no protocol in accordance with Article 20 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data and that defendant 1 was also not a beneficiary of deliberation AF No. 14/2016, thus there was no legal basis, defendant 2 now rejects this point as "legally incorrect." Defendant 2 continues to argue that at the time of the facts, defendant 2, just like defendant 1, had automatically assumed all rights and obligations of RCA Parko. Given the Litigation Chamber's perspective on this matter, as outlined in this decision, this reasoning cannot be followed. However, in the current context where the situation has been clarified between defendant 1 and defendant 2 to avoid the repetition of similar facts, the Litigation Chamber also takes this into account when determining the sanction it must impose.

III. Publication of the Decision

103. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose to directly disclose the identification data of the complainant, but the identification data of the defendants is mentioned, considering the general interest of this decision on the one hand, and the inevitable re-identification of the defendants in the case of pseudonymization, on the other hand.

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Pursuant to Article 108, § 1 of the LCA, this decision may be subject to appeal before the Market Court (Court of Appeal of Brussels) within thirty days from its notification, with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of a contradictory petition which must include the information listed in Article 1034ter of the Judicial Code. The contradictory petition must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit electronic system of Justice (Article 32ter of the Judicial Code).

(signed) Dirk Van der Kelen

Acting President of the Contentious Chamber

The petition must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and domicile of the petitioner, as well as, where applicable, their capacity and

national register number or business number;

3° the name, first name, domicile, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds for the request;

5° the indication of the judge who is seized of the request;

6° the signature of the petitioner or their lawyer.

"The petition, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry."

FOR THESE REASONS,

the Contentious Chamber of the Data Protection Authority decides, after deliberation, to order a dismissal, pursuant to Article 100, § 1, 5° of the LCA, for the violation of Article 5.1, a), Article 5.2, Article 6, Article 12.1, Article 14.1 a), and Article 24 of the GDPR.